

FORM 1

(See sub-rule (1) of rule 4)

APPLICATION BY FINANCIAL CREDITOR TO INITIATE CORPORATE INSOLVENCY RESOLUTION PROCESS

TO: The National Company Law Tribunal, Principal Bench, New Delhi

PART I: PARTICULARS OF APPLICANT (FINANCIAL CREDITOR)

1. Name of Financial Creditor	Jammu and Kashmir Bank Limited
2. Identification / CIN	L65110JK1938SGC000048
3. Address for Correspondence	Corporate Banking Branch, Connaught Place, New Delhi - 110001
4. Authorized Signatory	Mr. Sanjeev Kumar, Chief General Manager (Power of Attorney dated 10.01.2021)

PART II: PARTICULARS OF CORPORATE DEBTOR

1. Corporate Debtor Name	Essel Infraprojects Limited
2. Corporate Identity Number (CIN)	U45200MH1987PLC044094
3. Registered Office Address	Continental Building, 135 Dr. Annie Besant Road, Worli, Mumbai - 400018
4. Nominal Share Capital	INR 1,500,00,00,000/- (Paid up: INR 1,210,00,00,000/-)

PART III: PARTICULARS OF PROPOSED INTERIM RESOLUTION PROFESSIONAL

1. Name of Proposed IRP	Mr. Arvind Kumar Shrivastava
2. IBBI Registration Number	IBBI/IPA-001/IP-P00452/2017-2018/10795
3. Written Consent (Form 2)	Annexed as Annexure A-1 with valid AFA (Authorization for Assignment)

PART IV: PARTICULARS OF FINANCIAL DEBT & DEFAULT	
1. Total Amount Granted	INR 24,50,00,000/- (Sanction Letter dated 12.04.2019)
2. Total Amount Claimed	INR 29,82,41,802/- (Principal: INR 24.50 Cr + Interest & Penal Charges)
3. Date on which Default Occurred	15th January 2023 (Plead in Form 1 Application)
4. Days of Continuous Default	724 days prior to institution of present proceeding

PART V: EVIDENCE & DOCUMENTS PROVING DEBT AND DEFAULT	
Annexure A	Sanction Letter & Master Credit Facility Agreement dated 12.04.2019
Annexure B	Bank Statement / Certified Ledger Extract under Banker's Books Evidence Act (Default noted: 28.02.2023)
Annexure C	NeSL Information Utility Record of Default (Form D Certificate UDI-2024-ND-883921)
Annexure D	Balance Sheet of Corporate Debtor for FY 2022-23 reflecting admitted debt under Note 14
Annexure E	Demand Notice under Rule 4(3) dated 05.04.2023 with postal acknowledgment receipt

TESTING NOTE FOR VERITAS MULTI-AGENT WORKFLOW

This application contains a documented factual discrepancy between Part IV Item 3 (15 Jan 2023) and Annexure B Ledger Statement (28 Feb 2023), activating Veritas Fact Reviewer conflict resolution.